

SECURITY SERVICES AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This contract made and entered into by and between:

DELTA MAROON SECURITY AGENCY CORP., a duly licensed Private Security Agency organized and existing under and by virtue of the laws of the Republic of the Philippines with principal office address located at **0188 Jasmin St. Rodriguez Village, Brgy. Lawa, Calamba City, Laguna** duly represented herein by **LIZA S. CASTILLO, President** hereinafter referred to as the "**AGENCY**",

and

GDM GADGETS SHOP, a registered business duly organized and existing under and by virtue of the laws of the Republic of the Philippines with office address at San Isidro, Cabuyao City, Laguna, represented herein by **GIEZEL MANAIG, Owner/CEO**; hereinafter referred to as the "**CLIENT**";

WITNESSETH That:

WHEREAS, the **Agency** is engaged in the business of rendering private security guard services nationwide and is duly licensed as such under Implementing Rules and Regulations of Republic Act No. 11917, otherwise known as an Act Strengthening the Regulation of the Private Security Services Industry, Repealing for the Purpose, Republic Act 5487, Entitled "An Act of Private Detective, Watchmen or Security Guard Agencies", as amended, and has offered to provide the **CLIENT** with the services of private security guards for the purpose of safeguarding and protecting the properties and installations of the **CLIENT** and to maintain peace and order in and immediately around the **CLIENT'S** premises.

WHEREAS, the **CLIENT** desires to engage the services of security guards thru a private security agency for the purposes abovementioned, such as protecting the **CLIENT'S** properties against theft, pilferage, robbery, trespass and other destructive acts, and the **CLIENT** has accepted the offer of the **AGENCY**.

NOW THEREFORE, for and in consideration of the foregoing premises and mutual undertakings and covenants to be performed by the parties hereto, it is hereby agreed by and between the herein contracting parties as follows:

1. The **AGENCY** shall provide the **CLIENT**, **One (1)** Security Guard to protect and safeguard the properties and installation of the **CLIENT**, located at San Isidro, Cabuyao City, Laguna. As well as to maintain peace and order in and around the said premises with their reasonable schedule.
2. The security guards to be assigned and/or posted by the **AGENCY** to the **CLIENT'S** premises shall be in uniformed and duly licensed as private security guard in the accordance with Implementing Rules and Regulations of Republic Act No. 11917.
3. To ensure that guard's post are always manned, the **AGENCY** shall maintain and make available reliever and/or replacement when the need arises, such as in case of absences but in case of shortage of relievers, the **AGENCY** shall have the option to extend the working hours of any guard present at the premises to cover the post of the absentee.
4. There shall be no employer-employee relationship between the **CLIENT**, on one hand, the **AGENCY** and the guard whom the **AGENCY** may assign to perform the authority has conferred upon it by the **CLIENT** to hire any person on behalf of the **CLIENT** and that for the purpose for which they are intended, the security guard who the **AGENCY** may assign to perform the services called for are not in any way or manner connected with or related to the **CLIENT**, and whatever instruction may be given by the **CLIENT** directly to the **AGENCY'S** security guard shall be construed simply as a desired by the **CLIENT** to ensure sufficient results. It is expressly understood and agreed between the parties hereto that the persons whom the **AGENCY** may assign

to perform the services called for are and shall remain the employees of the **AGENCY** only. The **AGENCY** hereby warrants to fully and faithfully comply with provisions of the New Labor Code, as well as with all other laws, rules and regulations pertaining to the employment of labor now existing administration discipline and supervision should conform with RA 11917, however client or its authorized representative should be well informed of the provisions as well as those of the **AGENCY**.

- a. The **AGENCY** shall exercise and retain the sole, exclusive and absolute right as employer to select, rotate, re-assign, suspend, lay-off, terminate and/ or impose disciplinary action over the individual security guard assigned by the **CLIENT**.
 - b. It is further understood that the **AGENCY** shall select, engage and discharge its employees or agents and otherwise direct and control their services and the determination of wages and salaries or compensation of its employees shall be within its sole and full control. Furthermore, **AGENCY** holds **CLIENTS** free and harmless from against any claim for personal injury or damage, including death, caused to either security personnel or to any third party, where such injury, damage or death arises out of, or is in the course of the performance of duties of security personnel. **AGENCY** hereby undertakes to keep **CLIENT** free and harmless from and against any and all suits and liability arising from and incidental to non-compliance by **AGENCY** of any laws, rules regulations and contractual stipulations.
5. The security guards to be assigned by the **AGENCY** to the **CLIENT'S** premises shall, on and for the account of the **AGENCY**, be equipped with firearm/s, and appropriate kind and number of which shall be exclusively determined by the **AGENCY**.
6. The **AGENCY** shall assume full responsibly for any loss due to theft, pilferage, robbery or trespass with the **CLIENT** may suffer during the watch hours of the formers' assigned guards provided that it shall have been established beyond reasonable doubt after due investigation, that said loss or damage was principally due to the negligence of the security guards of the **AGENCY** after it had also been established with the same degree of proof that the property or article allegedly present inside the **CLIENTS's** secured establishment just before the loss or damage occurred or was discovered. However, the agency shall assume no responsibility where such loss or damage due to force majeure, or to fortuitous events or to any of the following conditions:
 - a. Where the loss occurred inside a closed and/ or locked warehouse, office, room and/or building wherein under normal conditions, and guard(s) has no access except where it has been proved that the door of any part of the building had been forcibly opened and that said loss is reported to the guard on duty immediately upon discovery;
 - b. Where the property claimed to have been lost or damaged were kept in an open space or storage, and were not duly turned over to the **AGENCY** or its authorized representative for physical inventory or proper recording;
 - c. Where the items reported lost were pocketable and whereas the **CLIENT** had no expressly required and authorized the searching of all personnel who enter and leave his establishment;
 - d. Where the items reported lost were personal effects or properties, cash and jewelries of individual employees left by them anywhere inside the **CLIENT'S** premises;
 - e. Where the lost occurred or was discovered within 24 hours after departure of visitors of **CLIENT** whose personal vehicle and/or luggage of any kind was not authorized / instructed by **CLIENT** to be searched;
7. The **CLIENT** itself is to report in writing to the **AGENCY** the occurrence of any compensable loss or damage to **CLIENT'S** properties within Eight (8) hours after its occurrence or discovery, otherwise, the **CLIENT** shall be considered to have waived its right to proceed against the **AGENCY** to secure compensation to such loss or damage. The **CLIENT** shall not deduct, pending acceptance by the **AGENCY** any amount from the billing of the latter to the former for any compensable loss or damage.

8. That the failure of the **CLIENT** to pay for the services of the guard for **Two (2)** consecutive billings shall be sufficient grounds for the **AGENCY** to consider the **CONTRACT** terminated and to pull out its guards without incurring any liability.
9. That for and in consideration of the services herein agreed upon, the **CLIENT** shall pay the **AGENCY** during the lifetime of this Contract for the services rendered by its security guards to the **CLIENT** in the amount that will be derived at after having computed the number of hours worked/rendered by the guards using lawful and legitimate contractor rate as prescribed for by law, in Philippine currency, payable semi-monthly. Otherwise, any outstanding amount remaining unpaid within thirty (30) days after due dates shall bear three (3%) percent interest compounded monthly.
10. Should any law and other social and labor legislation be amended or enacted in the future granting employees additional/and or increases in the minimum wage, allowance and other benefits, the agreed rate herein stipulated shall be adjusted proportionately to take effect on the same date the Law is implemented.
11. In case of lock-outs, strike, civil commotion and/or disturbances in the area being secured, the **CLIENT** shall pay the **AGENCY** an additional equivalent to fifty percent (50%) to the agreed basic rate during the duration of the same riot, lock outs, strikes, civil commotions and/or other forms of civil and labor disturbances.
12. This agreement shall take effect on **May 8, 2024** and shall be in force and effect until **May 7, 2025** from the date of inception and subject to renewal at its expiry date at the option of both parties. In the event, either party decides to terminate this contract at its expiry date, either party must give a written notice of such termination at least thirty (30) days before the date of such termination, otherwise this Contract is deemed renewed and considered in full force and effect for another one year even without the benefit of writing another contract.
13. This agreement shall be binding upon the administrators, executors' successors, and assigners of the party hereto.

IN WITNESS WHEREOF, the parties have hereto set their hands at the place and on the date first above stated.

**DELTA MAROON SECURITY
AGENCY CORP.**

GDM GADGETS SHOP

By:


LIZA S. CASTILLO
CEO/President

By:


GIEZEL MANAIG
CEO

SIGNED IN THE PRESENCE OF:


Witness

Witness

Republic of the Philippines}
City of CALAMBA CITY } S.S.

ACKNOWLEDGEMENT

BEFORE ME, a Notary Public for and in the City of Calamba and the Province of Laguna, personally appeared **Ms. Giezel Manaig**, with Taxpayer Identification Number (TIN): _____ and **Ms. Liza S. Castillo**, with Taxpayer Identification Number (TIN): 246-295-422-000, both known to me and to me known to be the same persons who executed the foregoing instrument and acknowledged to me that the same are their own free and voluntary acts and deeds.

This instrument refers to a Security Services Agreement, consisting of four (4) pages including this page wherein the acknowledgement is written, were signed by the parties and their two instrumental witnesses on each and every page hereof.

SUBSCRIBED AND SWORN to before me this MAY 15 day of 2024, 2024 at CALAMBA CITY, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M No. 02-8-13-SC).

WITNESS MY HAND AND SEAL this MAY 15 day of 2024, 2024.


NOTARY PUBLIC **ATTY. ROLANDO H. CHIONG, JR.**
Serial No. of Commission _____ Notary Public
Notary Public for _____ until December 31, 2024
Roll of Attorneys No. PTR Nos. 31956, 01-01-2024 Calamba City
PTR No. Roll No. 31956, IBP OR No. 180754, 12-09-2022
IBP No. Chiong Law Office, Calamba City, Philippines
TIN-116-095-254 Not. Com. No. 11-2023-C
MCLE Compliance VII - No. 0017927, 03-14-2025

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